

Ram Kaval alias Ram Kewal Chauhan v. State of U.P. and 4 others

High Court of Judicature at Allahabad · Division Bench · 18 May 2022 · WRIT - C No. - 9499 of 2022 · **Writ disposed with liberty to file a Para 6.5 objection; coercive recovery stayed in the meantime.**

HEADNOTE

A writ against recovery of electricity dues as arrears of land revenue was disposed without any finding on the demand. The consumer was left to file, within four weeks, an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer, to be decided after hearing, preferably within four further weeks. Coercive action on the demand was stayed for eight weeks or until disposal of that objection, whichever was earlier.

FACTUAL SUMMARY

Ram Kaval alias Ram Kewal Chauhan held connection No. 751721321211. On 10 September 2021 the Executive Engineer, Electricity Distribution Division-II, U.P. Power Corporation Limited, Azamgarh, referred dues of Rs. 2,43,177 to the District Magistrate for recovery as arrears of land revenue under Section 5 of the U.P. Government Electrical Undertaking (Dues Recovery) Act, 1958. He sought certiorari against that order and a mandamus against coercive steps. Counsel for the licensee stated that an objection to the demand could be filed and decided in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

Objection to electricity dues before coercive recovery

HOLDING

Without any opinion on the merits of the demand, the writ was disposed of with liberty to the consumer to submit, within four weeks, an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the Executive Engineer against recovery of Rs. 2,43,177 as arrears of land revenue. The objection is to be decided in accordance with law, after hearing, preferably within four further weeks. No coercive action shall be taken on the impugned demand for eight weeks or until disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

para-6.5-objection-before-coercive-recovery

A consumer challenging a Section 5 dues-recovery reference was relegated, without a decision on the bill, to a time-bound Para 6.5 objection before the Executive Engineer, with coercive action stayed until that decision or for eight weeks. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE DEMAND OF RS. 2,43,177 AND THE RECOVERY REFERENCE DATED 10.09.2021 UNDER SECTION 5 OF THE U.P. GOVERNMENT ELECTRICAL UNDERTAKING (DUES RECOVERY) ACT, 1958 WERE LAWFUL

The Court expressed no opinion on the merits and left the objection to be decided by the Executive Engineer under Para 6.5. ¶ 1

